

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
ERMILUIS PICHARDO,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER FERNANDO RODRIGUEZ
(shield # 27943), POLICE OFFICER PATRICK
DUFFY (shield # 16912) and POLICE OFFICER
JOHN BONHOMME (shield # 00633),Defendants.
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Index No. _____

Purchased 2-11-20Plaintiff designates New York
County as the place of trialThe basis of the venue is
where the tort arose**SUMMONS****TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bronx, NY
February 10, 2020

THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
888 Grand Concourse, Suite 1H
Bronx, NY 10451
(212) 939-7251

Defendant's Address:

**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**

100 Church Street

New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
NEW YORK COUNTY

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ERMILUIS PICHARDO

Plaintiff,

Index No.
Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER FERNANDO RODRIGUEZ
(shield # 27943), POLICE OFFICER PATRICK
DUFFY (shield # 16912) and POLICE OFFICER
JOHN BONHOMME (shield # 00633),

Defendants.

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Plaintiff ERMILUIS PICHARDO, by his attorneys THE LAW OFFICES OF ELLIOT S.
KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this
Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff ERMILUIS PICHARDO, was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.
4. At all times hereinafter mentioned, defendants, POLICE OFFICER FERNANDO

RODRIGUEZ (shield # 27943), POLICE OFFICER PATRICK DUFFY (shield # 16912) and POLICE OFFICER JOHN BONHOMME (shield # 00633), were and are police officers employed by Defendants.

BACKGROUND

5. On May 23, 2018, at approximately 3:30 p.m., in the vicinity of Audubon Avenue in New York County, without just cause or provocation, POLICE OFFICER FERNANDO RODRIGUEZ (shield # 27943), POLICE OFFICER PATRICK DUFFY (shield # 16912) and POLICE OFFICER JOHN BONHOMME (shield # 00633), handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Possession of a Weapon in the Third Degree and related charges.
6. On or about May 24, 2018, a criminal complaint was issued at the directive of the Defendants and a criminal action against Plaintiff commenced.
7. The criminal matter was terminated in favor of Plaintiff on November 19, 2018.

PROCEDURAL POSTURE

8. On January 22, 2019, Plaintiff served an Amended Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.
9. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
10. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

11. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION

12. Paragraphs 1-11 are incorporated by reference as though fully set forth herein.
13. In arresting Plaintiff, the Defendants acted with malice.
14. The Defendants lacked probable cause to arrest Plaintiff.
15. All charges pending against Plaintiff were dismissed and sealed on November 19, 2018.
16. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.
18. POLICE OFFICER FERNANDO RODRIGUEZ (shield # 27943), POLICE OFFICER PATRICK DUFFY (shield # 16912) and POLICE OFFICER JOHN BONHOMME (shield # 00633), were at all times relevant, duly appointed and acting as police officers with the NEW YORK CITY POLICE DEPARTMENT.
19. At all times mentioned herein, POLICE OFFICER FERNANDO RODRIGUEZ (shield # 27943), POLICE OFFICER PATRICK DUFFY (shield # 16912) and POLICE OFFICER JOHN BONHOMME (shield # 00633), were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.
20. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42

United States Code, Section 1983 and 42 United States Code, Section 1988.

21. Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.

22. On or about May 23, 2018, Defendants, including POLICE OFFICER FERNANDO RODRIGUEZ (shield # 27943), POLICE OFFICER PATRICK DUFFY (shield # 16912) and POLICE OFFICER JOHN BONHOMME (shield # 00633), while effectuating the seizure of Plaintiff, did search, seize, assault and commit a battery and grab the person of Plaintiff without a court authorized arrest or search warrant.

23. Defendants did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. Defendants did not possess probable cause to arrest Plaintiff.

24. The above actions of the Defendants' resulted in Plaintiff being deprived of the following rights under the United States Constitution:

- a. Freedom from assault to Plaintiff's person;
- b. Freedom from battery to Plaintiff's person;
- c. Freedom from illegal search and seizure;
- d. Freedom from false arrest;
- e. Freedom from the use of excessive force during the arrest process.

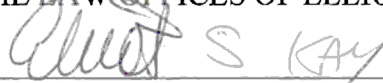
25. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

26. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to Plaintiff's detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, NY
February 10, 2020

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff

888 Grand Concourse, Suite 1H

Bronx, NY 10451

(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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ERMILUIS PICHARDO,

Plaintiff,

-against-

Index No.

Purchased: 2-11-20

VERIFICATION

CITY OF NEW YORK,
POLICE OFFICER FERNANDO RODRIGUEZ
(shield # 27943), POLICE OFFICER PATRICK
DUFFY (shield # 16912) and POLICE OFFICER
JOHN BONHOMME (shield # 00633),

Defendants

-----X

STATE OF NEW YORK)
COUNTY OF BRONX) ss:

ERMILUIS PICHARDO, being duly sworn deposes and says that the
deponent is the Plaintiff in the within action; that deponent has read the foregoing
and knows the contents thereof; that the same are true to deponents own
knowledge, except as to the matters therein stated to be alleged on information and
belief, and that as to those matters deponent believes them to be true.

Erniluis Pichardo
ERMILUIS PICHARDO

Sworn to before me on this
10th day of February, 2020

Elliot S. Kay
Notary Public

ELLIOT S. KAY
Notary Public, State of New York
No. 02KA6234193
Qualified in Westchester County
Commission Expires January 18, 2023